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President.” *Id.*, at 33. Evidence from both the founding and the early years of the Constitution confirms that the residual foreign affairs powers of the Government were part of the “executive Power.” *Id.*, at 35–40.

The President has extensive domestic responsibilities as well. He is given “[t]he executive Power,” Art. II, § 1, cl. 1, and is directed to “take Care that the Laws be faithfully executed,” § 3. “The vesting of the executive power in the President was essentially a grant of the power to execute the laws.” *Myers v. United States*, 272 U. S. 52, 117 (1926). Even under a proper understanding of the scope of federal power, the President could not possibly execute all of the laws himself. The President must accordingly appoint subordinates “to act for him under his direction in the execution of the laws.” *Ibid.* Once officers are selected, the President must “supervise and guide their construction of the statutes under which they act in order to secure that unitary and uniform execution of the laws which Article II of the Constitution evidently contemplated in vesting general executive power in the President alone.” *Id.*, at 135. And, of course, the President has the power to remove officers as he sees fit. *Id.*, at 176; see also *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U. S. 197, 238–251 (2020) (THOMAS, J., concurring in part and dissenting in part).

In addition, the President has several specifically enumerated domestic powers. He has the “Power to Grant Reprieves and Pardons for Offences against the United States, except in Cases of Impeachment.” Art. II, § 2, cl. 1. He also has the power to “nominate, and by and with the Advice and Consent of the Senate [to] appoint . . . Judges of the supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law.” Cl. 2. And he must “give to the Congress Information of the State of the Union, and recommend to their Consideration such Measures as he shall judge necessary and expedient.” § 3.

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The founding generation debated whether it was prudent to vest so many powers in a single person. Supporters of ratification responded that the design of the Presidency was necessary to the success of the Constitution. As Alexander Hamilton wrote:

“Energy in the executive is a leading character in the definition of good government. It is essential to the protection of the community against foreign attacks; it is not less essential to the steady administration of the laws; to the protection of property against those irregular and high-handed combinations which sometimes interrupt the ordinary course of justice; to the security of liberty against the enterprises and assaults of ambition, of faction, and of anarchy. . . . A feeble Executive implies a feeble execution of the government. A feeble execution is but another phrase for a bad execution; and a government ill executed, whatever it may be in theory, must be, in practice, a bad government.” The Federalist No. 70, at 423.

In sum, the demands on the President’s time and the importance of his tasks are extraordinary, and the office of the President cannot be delegated to subordinates. A subpoena imposes both demands on the President’s limited time and a mental burden, even when the President is not directly engaged in complying. This understanding of the Presidency should guide courts in deciding whether to enforce a subpoena for the President’s documents.

2

Courts must also recognize their own limitations. When the President asserts that matters of foreign affairs or national defense preclude his compliance with a subpoena, the Judiciary will rarely have a basis for rejecting that assertion. Judges “simply lack the relevant information and expertise to second-guess determinations made by the President based

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on information properly withheld.” *Hamdi*, 542 U. S., at 583 (THOMAS, J., dissenting).

“[E]ven if the courts could compel the Executive to produce the necessary information” to understand the demands on his time, decisions about that information “are simply not amenable to judicial determination because ‘[t]hey are delicate, complex, and involve large elements of prophecy.’” *Ibid.* (quoting *Chicago & Southern Air Lines, Inc. v. Waterman S. S. Corp.*, 333 U. S. 103, 111 (1948)). The President has at his disposal enormous amounts of classified intelligence regarding the Government’s concerns around the globe. His decisionmaking is further informed by experience in matters of foreign affairs, national defense, and intelligence that judges almost always will not have. And his decisionmaking takes into account the full spectrum of the Government’s operations, not just the matters directly related to a particular case. Even with perfect information, courts lack the institutional competence to engage in a searching review of the President’s reasons for not complying with a subpoena.

Here, too, Chief Justice Marshall was correct. A court should “fee[l] many, perhaps, peculiar motives for manifesting as guarded a respect for the chief magistrate of the Union as is compatible with its official duties.” *Burr*, 25 F. Cas., at 37. Courts should have the same “circumspection” as Chief Justice Marshall before “tak[ing] any step which would in any manner relate to that high personage.” *Id.*, at 35.³

³The President and the Solicitor General argue that the grand jury must make a showing of heightened need. I agree with the majority’s decision not to adopt this standard, *ante*, at 807–809, but for different reasons. The constitutional question in this case is whether the President is able to perform the duties of his office, whereas a heightened need standard addresses a logically independent issue. Under a heightened need standard, a grand jury with only the usual need for particular information would be refused it when the President is perfectly able to comply, while a grand jury with a heightened need would be entitled to it even if compliance

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I agree with the majority that the President has no absolute immunity from the issuance of this subpoena. The President also sought relief from enforcement of the subpoena, however, and he asked this Court to allow further proceedings on that question if we rejected his claim of absolute immunity. The Court inexplicably fails to address this request, although its decision leaves the President free to renew his request for an injunction against enforcement immediately on remand.

I would vacate and remand to allow the District Court to determine whether enforcement of this subpoena should be enjoined because the President's "duties as chief magistrate demand his whole time for national objects." *Id.*, at 34. Accordingly, I respectfully dissent.

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This case is almost certain to be portrayed as a case about the current President and the current political situation, but the case has a much deeper significance. While the decision will of course have a direct effect on President Trump, what the Court holds today will also affect all future Presidents—which is to say, it will affect the Presidency, and that is a matter of great and lasting importance to the Nation.

The event that precipitated this case is unprecedented. Respondent Vance, an elected state prosecutor, launched a criminal investigation of a sitting President and obtained a grand jury subpoena for his records. The specific question before us—whether the subpoena may be enforced—cannot be answered adequately without considering the broader question that frames it: whether the Constitution imposes restrictions on a State's deployment of its criminal law enforcement powers against a sitting President. If the Consti-

would place undue obligations on the President. This result makes little sense and lacks any basis in the original understanding of the Constitution. I would leave questions of the grand jury's need to state law.

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tution sets no such limits, then a local prosecutor may prosecute a sitting President. And if that is allowed, it follows *a fortiori* that the subpoena at issue can be enforced. On the other hand, if the Constitution does not permit a State to prosecute a sitting President, the next logical question is whether the Constitution restrains any other prosecutorial or investigative weapons.

These are important questions that go to the very structure of the Government created by the Constitution. In evaluating these questions, two important structural features must be taken into account.

I

A

The first is the nature and role of the Presidency. The Presidency, like Congress and the Supreme Court, is a permanent institution created by the Constitution. All three of these institutions are distinct from the human beings who serve in them at any point in time. In the case of Congress or the Supreme Court, the distinction is easy to perceive, since they have multiple Members. But because “[t]he President is the only person who alone composes a branch of government. . . . , there is not always a clear line between his personal and official affairs.” *Trump v. Mazars USA, LLP*, 591 U.S. 848, 868 (2020). As a result, the law’s treatment of the person who serves as President can have an important effect on the institution, and the institution of the Presidency plays an indispensable role in our constitutional system.

The Constitution entrusts the President with responsibilities that are essential to the country’s safety and well-being. The President is Commander in Chief of the Armed Forces. Art. II, §2, cl. 1. He is responsible for the defense of the country from the moment he enters office until the moment he leaves.

The President also has the lead role in foreign relations. He “make[s]” treaties with the advice and consent of the Sen-

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ate, Art. II, §2, cl. 2, decides whether to recognize foreign governments, *Zivotofsky v. Kerry*, 576 U. S. 1 (2015), enters into and rescinds executive agreements with other countries,¹ meets with foreign leaders, appoints ambassadors, Art. II, §2, cl. 2, oversees the work of the State Department and intelligence agencies, and exercises important foreign-relations powers under statutes and treaties that give him broad discretion in matters relating to subjects such as terrorism, trade, and immigration.²

¹ See, e. g., *American Ins. Assn. v. Garamendi*, 539 U. S. 396, 415 (2003); *Dames & Moore v. Regan*, 453 U. S. 654, 679–683 (1981); *United States v. Pink*, 315 U. S. 203, 229–230 (1942); *United States v. Belmont*, 301 U. S. 324, 330–331 (1937).

² Foreign Assistance Act of 1961, 22 U. S. C. §2318(a)(1) (permitting the President to order “the drawdown of defense articles from the stocks of the Department of Defense” in the event of “an unforeseen emergency . . . which requires immediate military assistance to a foreign country or international organization”); National Emergencies Act, 50 U. S. C. §1621 (authorizing the President to declare a national emergency and activate over 100 statutory emergency powers); International Emergency Economic Powers Act, 50 U. S. C. §1701(a) (granting Presidential emergency power “to deal with any unusual and extraordinary threat, which has its source in whole or substantial part outside the United States, to the national security, foreign policy, or economy of the United States”); Trading with the Enemy Act, 50 U. S. C. §4305(b)(1)(B) (authorizing the President, “[d]uring the time of war,” to prohibit “transactions involvin[g] any property in which any foreign country or a national thereof has any interest,” among other things); Trade Expansion Act of 1962, 19 U. S. C. §1862(c)(3)(A) (authorizing “actions as the President deems necessary to adjust the imports of” certain articles of trade “so that such imports will not threaten to impair the national security”); Trade Act of 1974, 19 U. S. C. §2132(a) (authorizing the President, among other things, to impose temporary duty surcharges or quotas in order to address “large and serious United States balance-of-payments deficits,” “an imminent and significant depreciation of the dollar in foreign exchange markets,” or “to cooperate with other countries in correcting an international balance-of-payments disequilibrium”), §2133(a) (authorizing the President, whenever a specified event “increases or imposes any duty or other import restriction,” to “enter into trade agreements with foreign countries or instrumentalities for the purpose of granting new concessions as compensation

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The Constitution vests the President with “the executive Power” of the United States, Art. II, § 1, cl. 1, and entrusts him with the responsibility to “take Care that the Laws be faithfully executed,” § 3. As the head of the Executive Branch, the President is ultimately responsible for everything done by all the departments and agencies of the Federal Government and a federal civilian work force that includes millions of employees. These weighty responsibilities impose enormous burdens on the time and energy of any occupant of the Presidency.

“Constitutionally speaking, the President never sleeps. The President must be ready, at a moment’s notice, to do whatever it takes to preserve, protect, and defend the Constitution and the American people.” Amar & Katyal, *Executive Privileges and Immunities: The Nixon and Clinton Cases*, 108 Harv. L. Rev. 701, 713 (1995). Without a President who is able at all times to carry out the responsibilities of the office, our constitutional system could not operate, and the country would be at risk. That is why the Twenty-fifth Amendment created a mechanism for temporarily transfer-

in order to maintain the general level of reciprocal and mutually advantageous concessions” and to take actions “to carry out any such agreement”), § 2411(a) (mandating the U. S. Trade Representative, subject to the President’s direction, to modify tariff rates if “the rights of the United States under any trade agreement are being denied” or if a foreign country’s actions are “unjustifiable and burde[n] or restric[t] United States commerce”), § 2461 (authorizing the President to “provide duty-free treatment for any eligible article from any beneficiary developing country”); Bipartisan Congressional Trade Priorities and Accountability Act of 2015, 19 U. S. C. §§ 4201–4210 (most recent delegation of trade-promotion authority, authorizing the President to negotiate and enter trade agreements); Immigration and Nationality Act of 1952, 8 U. S. C. § 1182(f) (authorizing the President, “for such period as he shall deem necessary,” to “suspend the entry of all aliens or any class of aliens as immigrants or nonimmigrants, or impose on the entry of aliens any restrictions he may deem to be appropriate,” “[w]hensoever the President finds that the entry of any aliens or of any class of aliens into the United States would be detrimental to the interests of the United States”).

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ring the responsibilities of the office to the Vice President if the President is incapacitated for even a brief time. The Amendment has been explicitly invoked on only two occasions, each time for a period of about two hours.³ This mechanism reflects an appreciation that the Nation cannot be safely left without a functioning President for even a brief time.

B

The second structural feature is the relationship between the Federal Government and the States. Just as our Constitution balances power against power among the branches of the Federal Government, it also divides power between the Federal Government and the States. The Constitution permitted the States to retain many of the sovereign powers that they previously possessed, see, *e.g.*, *Murphy v. National Collegiate Athletic Assn.*, 584 U. S. 453 (2018), but it gave the Federal Government powers that were deemed essential for the Nation's well-being and, indeed, its survival. And it provided for the Federal Government to be independent of and, within its allotted sphere, supreme over the States. Art. VI, cl. 2. Accordingly, a State may not block or interfere with the lawful work of the National Government.

This was an enduring lesson of Chief Justice Marshall's landmark opinion for the Court in *McCulloch v. Maryland*, 4 Wheat. 316 (1819). As is well known, the case concerned the attempt by the State of Maryland to regulate and tax the federally chartered Second Bank of the United States. After holding that Congress had the authority to establish

³See Letter from G. Bush to Congressional Leaders on Temporary Transfer of the Powers and Duties of President of the United States (June 29, 2002), www.presidency.ucsb.edu/node/213575; Letter from G. Bush to Congressional Leaders on the Temporary Transfer of the Powers and Duties of the President of the United States (July 21, 2007), www.presidency.ucsb.edu/node/276172; see also Stolberg, For a Short While Today, It Will Be President Cheney, N. Y. Times, July 21, 2007, p. A11, col. 1.

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the bank, *id.*, at 425, Marshall's opinion went on to conclude that the State could not tax it. Marshall recognized that the States retained the "sovereign" power to tax persons and entities within their jurisdiction, *id.*, at 429, but this power, he explained, "is subordinate to, and may be controlled by the constitution of the United States." *Id.*, at 427. Noting the potency of the taxing power ("[a] right to tax without limit or control, is essentially a power to destroy," *id.*, at 391), he concluded that a State's power to tax had to give way to Congress's authority to charter the bank. In his words, the state power to tax could not be used to "defeat the legitimate operations," *id.*, at 427, of the Federal Government or "to retard, impede, burden, or in any manner control" it, *id.*, at 436. Marshall thus held, not simply that Maryland was barred from assessing a crushing tax that threatened the bank's ability to operate, but that the State could not tax the bank at all. He wrote:

"We are not driven to the perplexing inquiry, so unfit for the judicial department, what degree of taxation is the legitimate use, and what degree may amount to the abuse of the power. The attempt to use it on the means employed by the government of the Union, in pursuance of the constitution, is itself an abuse." *Id.*, at 430.

Even a rule allowing a state tax that did not discriminate between the federally chartered bank and state banks was ruled out. Instead, he concluded that preservation of the Constitution's federal structure demanded that any state effort to tax a federal instrumentality be nipped in the bud.

Building on this principle of federalism, two centuries of case law prohibit the States from taxing,⁴ regulating, or oth-

⁴ *Kern-Limerick, Inc. v. Scurlock*, 347 U. S. 110, 117 (1954) (noting that "recognition of the constitutional immunity of the Federal Government from state exactions rests, of course, upon unquestioned authority"); *Mayo v. United States*, 319 U. S. 441, 447 (1943) ("These inspection fees are laid directly upon the United States. They are money exactions the payment of which, if they are enforceable, would be required before executing a

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erwise interfering with the lawful work of federal agencies, instrumentalities, and officers.⁵ The Court premised these

function of government. Such a requirement is prohibited by the supremacy clause”); *Clallam County v. United States*, 263 U.S. 341, 344 (1923) (holding that property owned by the United States is immune from state taxation); see also *Weston v. City Council of Charleston*, 2 Pet. 449, 469 (1829) (“The tax on government stock is thought by this Court to be a tax on the contract, a tax on the power to borrow money on the credit of the United States, and consequently to be repugnant to the constitution”); *Osborn v. Bank of United States*, 9 Wheat. 738, 867 (1824) (“If the trade of the Bank be essential to its character, as a machine for the fiscal operations of the government, that trade must be as exempt from State control as the actual conveyance of the public money. Indeed, a tax bears upon the whole machine; as well upon the faculty of collecting and transmitting the money of the nation, as on that of discounting the notes of individuals. No distinction is taken between them”); *Dawson v. Steager*, 586 U.S. 171, 174 (2019) (surveying Court precedent on intergovernmental tax immunity).

⁵*Goodyear Atomic Corp. v. Miller*, 486 U.S. 174, 180 (1988) (“It is well settled that the activities of federal installations are shielded by the Supremacy Clause from direct state regulation unless Congress provides ‘clear and unambiguous’ authorization for such regulation”); *id.*, at 181 (concluding that “a federally owned facility performing a federal function is shielded from direct state regulation, even though the federal function is carried out by a private contractor, unless Congress clearly authorizes such regulation”); *Hancock v. Train*, 426 U.S. 167, 178–179 (1976) (rejecting state agency’s bid to regulate a federal installation and surveying doctrines that establish that “‘the federal function must be left free’ of [state] regulation”); see also *Leslie Miller, Inc. v. Arkansas*, 352 U.S. 187, 189–190 (1956) (*per curiam*) (concluding that federal contractors cannot be forced to submit to state licensing procedures that would add to the qualifications required to receive the federal contract); *Johnson v. Maryland*, 254 U.S. 51, 57 (1920) (concluding that federal postal officials may not be required to get a state driver’s license to perform their duties and explaining that “the immunity of the instruments of the United States from state control in the performance of their duties extends to . . . requirement[s] that they desist from performance until they satisfy a state officer upon examination that they are competent for a necessary part of them”); *In re Neagle*, 135 U.S. 1, 75 (1890) (concluding that a federal official may not be “held in the state court to answer for an act which he [or she] was authorized to do by the law of the United States”); *id.*, at 62 (“To cite all the cases in which this principle of the supremacy of the government of the

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cases on the principle that “the activities of the Federal Government are free from regulation by any state. No other adjustment of competing enactments or legal principles is possible.” *Mayo v. United States*, 319 U.S. 441, 445 (1943) (footnote omitted).

II

A

In *McCulloch*, Maryland’s sovereign taxing power had to yield, and in a similar way, a State’s sovereign power to enforce its criminal laws must accommodate the indispensable role that the Constitution assigns to the Presidency. This must be the rule with respect to a state prosecution of a sitting President. Both the structure of the Government established by the Constitution and the Constitution’s provisions on the impeachment and removal of a President make it clear that the prosecution of a sitting President is out of the question. It has been aptly said that the President is the “sole indispensable man in government,”⁶ and subjecting a sitting President to criminal prosecution would severely

United States, in the exercise of all the powers conferred upon it by the Constitution, is maintained, would be an endless task”); *Tarble’s Case*, 13 Wall. 397, 404 (1872) (explaining that States have no authority to “interfere with the authority of the United States, whether that authority be exercised by a Federal officer or be exercised by a Federal tribunal”); *Crosby v. National Foreign Trade Council*, 530 U.S. 363, 376–382 (2000) (explaining harm caused by state statutes that would “compromise the very capacity of the President to speak for the Nation with one voice in dealing with other governments”); *EPA v. California ex rel. State Water Resources Control Bd.*, 426 U.S. 200, 211 (1976) (“Federal installations are subject to state regulation only when and to the extent that congressional authorization is clear and unambiguous”); *Arizona v. California*, 283 U.S. 423, 451 (1931) (“The United States may perform its functions without conforming to the police regulations of a State”); *Hunt v. United States*, 278 U.S. 96, 100–101 (1928) (recognizing that the United States was entitled to an injunction against state officers interfering with private citizens killing deer in national forest under authority of the United States).

⁶P. Kurland, *Watergate and the Constitution* 135 (1978).

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hamper his ability to carry out the vital responsibilities that the Constitution puts in his hands.

Justice Joseph Story endorsed this reasoning in his famous treatise. He wrote that a President's responsibilities necessarily entail "the power to perform [those duties], without any obstruction or impediment whatsoever," and that, as a result, a President is not "liable to arrest, imprisonment, or detention" while in office. 3 Commentaries on the Constitution of the United States § 1563, pp. 418–419 (1833).

The constitutional provisions on impeachment provide further support for the rule that a President may not be prosecuted while in office. The Framers foresaw the need to provide for the possibility that a President might be implicated in the commission of a serious offense, and they did not want the country to be forced to endure such a President for the remainder of his term in office. But when a President has been elected by the people pursuant to the procedures set out in the Constitution, it is no small thing to overturn that choice. The Framers therefore crafted a special set of procedures to deal with that contingency. They put the charging decision in the hands of a body that represents all the people (the House of Representatives), not a single prosecutor or the members of a local grand jury. And they entrusted the weighty decision whether to remove a President to a supermajority of Senators, who were expected to exercise reasoned judgment and not the political passions of the day or the sentiments of a particular region.

The Constitution not only sets out the procedures for dealing with a President who is suspected of committing a serious offense; it also specifies the consequences of a judgment adverse to the President. After providing that the judgment cannot impose any punishment beyond removal from the Presidency and disqualification from holding any other federal office, the Constitution states that "the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law." Art.

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I, §3, cl. 7. The plain implication is that criminal prosecution, like removal from the Presidency and disqualification from other offices, is a consequence that can come about only after the Senate’s judgment, not during or prior to the Senate trial.

This was how Hamilton explained the impeachment provisions in the Federalist Papers. He wrote that a President may “be impeached, tried, and, upon conviction . . . *would afterwards be liable to prosecution and punishment in the ordinary course of law.*” The Federalist No. 69, p. 416 (C. Rossiter ed. 1961) (emphasis added); see also *id.*, No. 77, at 464 (A. Hamilton) (a President is “at all times liable to impeachment, trial, [and] dismissal from office,” but any other punishment must come only “by *subsequent prosecution* in the common course of law” (emphasis added)).

In the proceedings below, neither respondent, nor the District Court, nor the Second Circuit was willing to concede the fundamental point that a sitting President may not be prosecuted by a local district attorney. Respondent has said that he is investigating the President and, until oral argument in this Court, he never foreswore an intention to charge the President while he is still in office.⁷ The District

⁷ During oral argument in the Second Circuit, respondent’s attorney said the following:

“It’s hard for me to say that there could be no circumstance under which a President could ever imaginably be criminally charged or perhaps tried You can invent scenarios where you can imagine that it would be necessary or at least perhaps a good idea for a sitting President to be subject to a criminal charge even by a state while in office.” Recording of Oral Arg. in No. 19–3204 (CA2, Oct. 23, 2019), at 28:20–28:40; 36:35–36:45, https://www.ca2.uscourts.gov/decisions/oral_arguments.html.

Respondent’s brief in this case says only that “[f]or the purpose of this case, the Court may assume . . . that a sitting President is not amenable to criminal prosecution.” Brief for Respondent Vance 24–25. During oral argument in this Court, however, counsel for respondent stated: “We’re mindful that as a state actor our office cannot investigate a president for any official acts and that we cannot prosecute a president while in office.” Tr. of Oral Arg. 54.

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Court conceded only that “perhaps” a sitting President could not be prosecuted for an offense punishable by “lengthy imprisonment” but that an offense requiring only a short trial would be another matter. 395 F. Supp. 3d 283, 289, 311 (SDNY 2019). And the Second Circuit was silent on the question.

The scenario apparently contemplated by the District Court is striking. If a sitting President were charged in New York County, would he be arrested and fingerprinted? He would presumably be required to appear for arraignment in criminal court, where the judge would set the conditions for his release. Could he be sent to Rikers Island or be required to post bail? Could the judge impose restrictions on his travel? If the President were scheduled to travel abroad—perhaps to attend a G-7 meeting—would he have to get judicial approval? If the President were charged with a complicated offense requiring a long trial, would he have to put his Presidential responsibilities aside for weeks on end while sitting in a Manhattan courtroom? While the trial was in progress, would aides be able to approach him and whisper in his ear about pressing matters? Would he be able to obtain a recess whenever he needed to speak with an aide at greater length or attend to an urgent matter, such as speaking with a foreign leader? Could he effectively carry out all his essential Presidential responsibilities after the trial day ended and at the same time adequately confer with his trial attorneys regarding his defense? Or should he be expected to give up the right to attend his own trial and be tried in absentia? And if he were convicted, could he be imprisoned? Would aides be installed in a nearby cell?

This entire imagined scene is farcical. The “right of all the People to a functioning government” would be sacrificed. Amar & Kalt, *The Presidential Privilege Against Prosecution*, 2 *Nexus* 11, 14 (1997). “Does anyone really think, in a country where common crimes are usually brought before state grand juries by state prosecutors, that it is feasible to

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subject the president—and thus the country—to every district attorney with a reckless mania for self-promotion?” C. Black & P. Bobbitt, *Impeachment: A Handbook* 112 (2018). See also R. Moss, Asst. Atty. Gen., *A Sitting President’s Amenability to Indictment and Criminal Prosecution*, 24 Op. Office of Legal Counsel (OLC) 222, 260 (2000) (Moss Memo); Memorandum from R. Dixon, Asst. Atty. Gen., OLC, Re: *Amenability of the President, Vice President and Other Civil Officers to Federal Criminal Prosecution While in Office* (Sept. 24, 1973).

B

While the prosecution of a sitting President provides the most dramatic example of a clash between the indispensable work of the Presidency and a State’s exercise of its criminal law enforcement powers, other examples are easy to imagine. Suppose state officers obtained and sought to execute a search warrant for a sitting President’s private quarters in the White House. Suppose a state court authorized surveillance of a telephone that a sitting President was known to use. Or suppose that a sitting President was subpoenaed to testify before a state grand jury and, as is generally the rule, no Presidential aides, even those carrying the so-called “nuclear football,”⁸ were permitted to enter the grand jury room. What these examples illustrate is a principle that this Court has recognized: legal proceedings involving a sitting President must take the responsibilities and demands of the office into account. See *Clinton v. Jones*, 520 U.S. 681, 707 (1997).

It is not enough to recite sayings like “no man is above the law” and “the public has a right to every man’s evidence.” *Ante*, at 791, 812. These sayings are true—and important—but they beg the question. The law applies equally to all

⁸ Atomic Heritage Foundation, *Nuclear Briefcases* (June 12, 2018), www.atomicheritage.org/history/nuclear-briefcases.

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persons, including a person who happens for a period of time to occupy the Presidency. But there is no question that the nature of the office demands in some instances that the application of laws be adjusted at least until the person's term in office ends.

C

I now come to the specific investigative weapon at issue in the case before us—a subpoena for a sitting President's records. This weapon is less intrusive in an immediate sense than those mentioned above. Since the records are held by, and the subpoena was issued to, a third party, compliance would not require much work on the President's part. And after all, this is just one subpoena.

But we should heed the “great jurist,” *ante*, at 810, who rejected a similar argument in *McCulloch*. If we say that a subpoena to a third party is insufficient to undermine a President's performance of his duties, what about a subpoena served on the President himself? Surely in that case, the President could turn over the work of gathering the requested documents to attorneys or others recruited to perform the task. And if one subpoena is permitted, what about two? Or three? Or ten? Drawing a line based on such factors would involve the same sort of “perplexing inquiry, so unfit for the judicial department” that Marshall rejected in *McCulloch*, 4 Wheat., at 430.

The Court faced a similar issue when it considered whether a President can be sued for an allegedly unlawful act committed in the performance of official duties. See *Nixon v. Fitzgerald*, 457 U.S. 731 (1982). We did not ask whether the particular suit before us would have interfered with the carrying out of Presidential duties. (It could not have had that effect because President Nixon had already left office.)

Instead, we adopted a rule for all such suits, and we should take a similar approach here. The rule should take into

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account both the effect of subpoenas on the functioning of the Presidency and the risk that they will be used for harassment.

I turn first to the question of the effect of a state grand jury subpoena for a President's records. When the issuance of such a subpoena is part of an investigation that regards the President as a "target" or "subject,"⁹ the subpoena can easily impair a President's "energetic performance of [his] constitutional duties." *Cheney v. United States Dist. Court for D. C.*, 542 U. S. 367, 382 (2004). Few individuals will simply brush off an indication that they may be within a prosecutor's crosshairs. Few will put the matter out of their minds and go about their work unaffected. For many, the prospect of prosecution will be the first and last thing on their minds every day.

We have come to expect our Presidents to shoulder burdens that very few people could bear, but it is unrealistic to think that the prospect of possible criminal prosecution will not interfere with the performance of the duties of the office. "[C]riminal litigation uniquely requires [a] President's personal time and energy, and will inevitably entail a considerable if not overwhelming degree of mental preoccupation." Moss Memo 254 (emphasis deleted). See also Kavanaugh,

⁹ Respondent asserts that his office has never characterized President Trump as a "target" of the investigation, Brief for Respondent Vance 29, n. 10, but by the same token, respondent has never said that the President is not a "target." Moreover, the terms "target" and "subject" have no consistent legal meaning. The United States Attorney's Manual defines a "target" as "a person as to whom the prosecutor or the grand jury has substantial evidence linking him or her to the commission of a crime and who, in the judgment of the prosecutor, is a putative defendant." Dept. of Justice, Justice Manual, Section 9-11.151 (Jan. 2020), <https://www.justice.gov/jm/jm-9-11000-grand-jury#9-11.151/>. "A 'subject' of an investigation" is defined as "a person whose conduct is within the scope of the grand jury's investigation." *Ibid.* Of course, these definitions are not binding on the State of New York, but under them, it is apparent that the President is at least a "subject."

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Separation of Powers During the Forty-Fourth Presidency and Beyond, 93 Minn. L. Rev. 1454, 1461 (2009) (“[A] President who is concerned about an ongoing criminal investigation is almost inevitably going to do a worse job as President”).

As for the potential use of subpoenas to harass, we need not “‘exhibit a naiveté from which ordinary citizens are free.’” *Department of Commerce v. New York*, 588 U. S. 752, 785 (2019). As we have recognized, a President is “an easily identifiable target.” *Fitzgerald*, 457 U. S., at 752–753. There are more than 2,300 local prosecutors and district attorneys in the country.¹⁰ Many local prosecutors are elected, and many prosecutors have ambitions for higher elected office. (Respondent’s famous predecessor Thomas E. Dewey used the office of District Attorney for New York County as a springboard to the governorship of New York and to the Republican nomination for President in 1944 and 1948.) If a sitting President is intensely unpopular in a particular district—and that is a common condition—targeting the President may be an alluring and effective electoral strategy. But it is a strategy that would undermine our constitutional structure.

The Framers understood the importance of protecting the Presidency from interference by the States. At the Constitutional Convention, James Wilson argued that the President should be “as independent as possible . . . of the States.” 1 Records of the Federal Convention of 1787, p. 69 (M. Farrand ed. 1911). He and James Madison successfully opposed a proposal to vest the impeachment power in state legislatures, contending that this “would open a door for intrigues agst. [the President] in States where his administration tho’ just might be unpopular, and might tempt him to pay court to particular States whose leading partizans he might fear.” *Id.*, at 86. And to prevent a State from compromising a

¹⁰ Dept. of Justice, Bureau of Justice Statistics, Prosecutors in State Courts, 2007—Statistical Tables 1 (Dec. 2011).

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President's independence, the Convention adopted a provision barring a President from receiving an "Emolument" from any State, U. S. Const., Art. II, § 1, cl. 7. See *The Federalist* No. 73, at 494 (J. Cooke ed. 1961) (A. Hamilton).

Two centuries later, the Court's decision in *Clinton* reflected a similar concern. The Court held that a sitting President could be sued in federal court, but the Court took pains to reserve judgment on the question whether "a comparable claim might succeed in a state tribunal." 520 U. S., at 691. "[A]ny direct control by a state court over the President," the Court observed, might raise concerns about "protecting federal officials from possible local prejudice." *Ibid.*, and n. 13.

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In light of the above, a subpoena like the one now before us should not be enforced unless it meets a test that takes into account the need to prevent interference with a President's discharge of the responsibilities of the office. I agree with the Court that not all such subpoenas should be barred. There may be situations in which there is an urgent and critical need for the subpoenaed information. The situation in the Burr trial, where the documents at issue were sought by a criminal defendant to defend against a charge of treason, is a good example. But in a case like the one at hand, a subpoena should not be allowed unless a heightened standard is met.

Prior cases involving Presidential subpoenas have always applied special, heightened standards. In the Burr trial, Chief Justice Marshall was careful to note that "[i]n no case of this kind would a court be required to proceed against the president as against an ordinary individual," and he held that the subpoena to President Jefferson was permissible only because the prosecutor had shown that the materials sought were "essential to the justice of the [pending criminal] case." *United States v. Burr*, 25 F. Cas. 187, 192 (No. 14,694) (CC Va. 1807) (brackets omitted).

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In *United States v. Nixon*, 418 U. S. 683 (1974), where the Watergate Special Prosecutor subpoenaed tape recordings and documents under the control of President Nixon, this Court refused to quash the subpoena because there was a “demonstrated, specific need for [the] evidence in a pending criminal trial.” *Id.*, at 713. In an earlier Watergate-related case where a Senate Committee subpoenaed President Nixon’s White House tapes, the D. C. Circuit refused to order their production because the Committee had failed to show that “the subpoenaed evidence [wa]s demonstrably critical to the responsible fulfillment of the Committee’s functions.” *Senate Select Comm. on Presidential Campaign Activities v. Nixon*, 498 F. 2d 725, 731 (1974). Later, when an independent counsel investigating a Cabinet officer wanted to enforce a federal grand jury subpoena for privileged materials held by the White House counsel, the D. C. Circuit explained that enforcement demanded a “‘demonstrated, specific need’” for the materials sought. *In re Sealed Case*, 121 F. 3d 729, 736 (1997) (*per curiam*).

The important point is not that the subpoena in this case should necessarily be governed by the particular tests used in these cases, most of which involved official records that were claimed to be privileged. Rather, the point is that we should not treat this subpoena like an ordinary grand jury subpoena and should not relegate a President to the meager defenses that are available when an ordinary grand jury subpoena is challenged. But that, at bottom, is the effect of the Court’s decision.

The Presidency deserves greater protection. Thus, in a case like this one, a prosecutor should be required (1) to provide at least a general description of the possible offenses that are under investigation, (2) to outline how the subpoenaed records relate to those offenses, and (3) to explain why it is important that the records be produced and why it is necessary for production to occur while the President is still in office.